

25STCV32023 25STCV32023

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-09-02

Motion: PLAINTIFF'S MOTION FOR LEAVE TO AMEND COMPLAINT

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Case Number: 25STCV32023 Hearing Date: September 2, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

AMANDA

BONET, an individual,

Plaintiff,

vs.

FOUR SISTERS INN, a California corporation; BRANDON

RIVERA, an individual; and DOES 1 through 50, inclusive,

Defendants.

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CASE

NO.: 25STCV32023

[TENTATIVE] ORDER RE: PLAINTIFF'S
MOTION FOR LEAVE TO AMEND COMPLAINT

Dept. 733

8:30 a.m.

September 2, 2026

I.

INTRODUCTION

This is FEHA
discrimination and harassment action.

On November 3,
2025, Plaintiff Amanda Bonet ("Plaintiff") filed a complaint against Defendants
Four Sisters Inn ("Four Sisters") and Brandon Rivera ("Rivera") ("Defendants"),
alleging causes of action for (1) Sexual Harassment in Violation of Cal. Gov. §
12940(j) (2) Gender Discrimination in Violation of Cal. Gov. § 12940(a) (3)
Retaliation in Violation of Cal. Gov. § 12940(h) (4) Violation of Labor Code §
1102.5 (Whistleblower Retaliation) (5) Violation of Labor Code § 98.6
(Whistleblower Retaliation) (6) Negligent Supervision, Hiring, and Retention
(7) Failure to Take All Reasonable Steps to Prevent Harassment, Discrimination,
and Retaliation in Violation of Cal. Gov. § 12940(j)(1) and (k) (8) Wrongful
Constructive Termination in Violation of Public Policy and (9) Intentional

Infliction of Emotional Distress.

On July 21, 2026,
Plaintiff filed the instant motion for leave to amend the complaint.

On August 20,
2026, Rivera filed an opposition.

On August 25,
2026, Plaintiff filed a reply.

II.

LEGAL STANDARD

“The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars...” (Code Civ. Proc., § 473(a)(1).) “Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order”. (Id., § 576.)
Permissible amendments include the addition of new causes of action as well as the addition of new parties. (Id., §§ 426.50, 473(a).)

The court has broad discretion to permit amendments to pleadings, and “the court’s discretion will usually be exercised liberally to permit amendment of the pleadings.” (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) “The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (Ibid.) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend” (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530.) Prejudice includes “delay in trial, loss of critical evidence, or added costs of preparation.” (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448.)

California Rules

of Court, rule 3.1321(a) requires that a motion to amend must: “[i]nclude a copy of the proposed . . . amended pleading . . . [and] state what allegations in the previous pleading are proposed to be [deleted and/or added], if any, and where, by page, paragraph, and line number, the [deleted and/or additional]

allegations are located.”² Pursuant to California Rules of Court, rule 3.1324(b), a separate declaration must accompany a motion for leave to amend and must specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier.³

III.

DISCUSSION

Plaintiff seeks to amend the complaint to add five new causes of action: (i) Assault; (ii)

Battery; (iii) Gender Violence in Violation of Civil Code § 52.4; (iv) Violation of the Ralph Civil Rights Act (Civil Code § 51.7); and (v) Violation of the Bane Civil Rights Act (Civil Code § 52.1), all of which relate to Plaintiff's other causes of action in the original complaint.

The Court finds that Plaintiff has complied California Rules of Court, rule 3.1324(a).⁴ The motion includes a copy of the proposed First Amended Complaint (FAC).⁵ (Yebri Decl., Ex. B.) Plaintiff sets forth that the proposed FAC would reflect the new causes of action as stated above, as well as some new factual allegations in support. However, Plaintiff provides that the new claims and allegations revolve around the same set of facts and claims as the original complaint. (Id. ¶¶ 6-7.)

Plaintiff's motion also substantially complies with California Rules of Court, rule 3.1324(b). Plaintiff's counsel's declaration specifies the effect of the amendments and explains why the amendments are necessary and proper. (Id. ¶ 9.) Plaintiff's counsel asserts that through investigation and the recent review of Rivera's discovery responses, Plaintiff's counsel identified grounds to pursue the additional claims set forth in the [Proposed] FAC. (Ibid.) Specifically, in response to Plaintiff's Requests for Admission, set one, Rivera “admitted that he ‘slapped Plaintiff's buttocks’” (Id. ¶ 3.) Plaintiff's counsel further states that the amendment was not sought earlier because Rivera's discovery responses were just served on May 28, 2026. (Id. ¶ 10.)

In opposition,

Rivera contends that the “facts” to which Rivera purportedly admitted were already pled in Plaintiff’s original complaint. (See Compl., ¶ 22 [“RIVERA repeatedly grabbed and slapped Plaintiff’s buttocks, including violently smacking her buttocks as hard as he could without any warning and without Plaintiff’s invitation, consent, or permission.”].) Rivera argues that the basis for Plaintiff’s proposed new causes of action were already known and pled, and thus should have been asserted in the original complaint. However, “[a]mendments to conform to proof should be liberally granted.” (20th Century Cigarette Vendors v. Shaheen (1966) 241 Cal.App.2d 391, 396.) Furthermore, “it is irrelevant that new legal theories are introduced as long as the proposed amendments ‘relate to the same general set of facts.’ [Citation.]” (Kittredge Sports Co. v. Sup. Ct. (1989) 213 Cal.App.3d 1045, 1048.)

Rivera also does not meaningfully argue that he would be prejudiced by the amendment. Trial is currently scheduled for May 15, 2028. Thus, there is ample time to conduct further discovery on the proposed new claims. (See Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564 [where no prejudice is shown to the adverse party, the liberal rule of allowance prevails]; (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530 [“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.”]; Kittredge Sports Co., supra, 213 Cal.App.3d at p. 1048 [“[I]t is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.”].)

IV.

CONCLUSION

Plaintiff’s motion for leave to amend the complaint is GRANTED. Plaintiff must file the

proposed First Amended Complaint within five (5) days of this order.

Dated this 2nd

day of September 2026

Hon. Gary

D. Roberts

Judge

of the Superior Court